I N D I C T M E N T

The United States of America, by the undersigned Telford Taylor, Chief of Counsel for War Crimes, duly appointed to represent said Government in the prosecution of war criminals, charges that the defendants herein committed War Crimes and Crimes against Humanity, as defined in Control Council Law No. 10, duly enacted by the Allied Control Council on 20 December 1945. These crimes included murders; brutalities; cruelties; tortures; atrocities; deportation; enslavement; plunder of public and private property; persecutions, and other inhumane acts as set forth in Counts One, Two, Three, and Four of this Indictment.

The persons accused as guilty of these crimes and accordingly named as defendants in this case are:

FRIEDRICH FLICK - The principal proprietor, dominating influence, and active head of a large group of industrial enterprises (the most important of which are described in Appendix A hereof) including coal and iron mines and steel producing and fabricating plants, sometimes collectively referred to herein as the "Flick Concern"; member of the Aufsichtsrat (supervisory board) of numerous other large industrial and financial companies; Wehrwirtschaftsfuehrer (military economy leader); member of the Praesidium of Reichsvereinigung Kohle and of Reichsvereinigung Eisen (official bodies for regulation of the coal and iron and steel industries); member of the Kleiner Kreis ("Small Circle"), a small group of leaders of the iron, coal and steel industry which exercised great influence over the industry for many years before and during the war; member of the Verwaltungsrat (supervisory board) of the Berg und Huettenwerke Ost G.m.b.H. (BHO), a government sponsored company for exploitation of the Russian mining and smelting industries; member of the Beirat (advisory council) of the Wirtschaftsgruppe Eisenschaffende Industrie (Economic Group of the Iron Producing Industry); member of the "Circle of Friends" of Himmler, which gave financial and other support to Die Schutzstaffeln der Nationalsozialistischen Deutschen Arbeiterpartei (commonly known as the SS); member of the Nationalsozialistische Deutsche